



ORIGINAL

Latin American Forwarding Company

Miami, Florida September 28, 2004

Secretary
Federal Maritime Commission
800 North Capitol Street,
North West
Washington, DC 20573

RE: Tariff Exemption
Lafco Americas Inc, OTI Number 13824-N

Dear Sir or Madam:

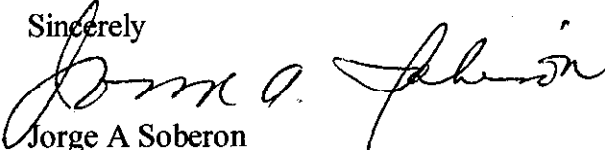
Lafco Americas Inc, is Non Vessel Operating Common Carrier (NVOCC) formed in June 16, 1995 ; we have 8 employees and service over 800 clients in the shipping community. We issue approximately 1,500 bill of lading per year.

We are aware of the UPS/NITL petition and of the tariff exemption petition originally filed by the NCBFAA. It is our position that the proposal by UPS/NITL does nothing to eliminate the cost and burden we currently experience in filing our rates in compliance with the current regulations. We see no reason to file such agreements with the FMC or publish essential terms since this burdensome filing serves no purpose to the shipping community. Today none of our clients access our electronically available tariff nor is there any reason to believe this will change in the future. Our rates are continually changing as many times rates are negotiated on a "Spot" basis thus the memorializing of the rates is burdensome, impractical and not useful. Our rates with our clients can be memorialized in written form between the client and the NVOCC but we would not like to have to file this information with the FMC

The NCBFAA petition seeking the broad tariff exemption is far more preferable as it eliminates needless expense, permits NVOCC's to be more responsive to the ocean shipping marketplace and the needs of our clients and still permits the FMC to oversee the trade and correct any abuses or malpractices.

We urge the FMC to take prompt action to grant the NCBFAA'S petition as soon as possible.

Sincerely


Jorge A Soberon
President.

CC: OS/OGC
Public
Chairman
Commissioner(s)
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